

CDB OVERPAYMENT — FORMAL NOTICE OF APPEAL

Income and Employment Supports Act (IESA), Section 35 | Alberta Disability System Breakdown | April 2026

URGENT: You have 30 days from the date you received your overpayment notice to file this appeal. Do not delay. Collection will not begin until your appeal period expires or your appeal is decided. Under IESA s.35, you have the right to appeal BOTH the assessment AND the requirement to repay.

WHAT THIS FORM IS: A formal Notice of Appeal under IESA Section 35. It challenges the government's decision to assess a CDB retroactive overpayment against you and/or require you to repay it. This form uses the government's own policy language. Fill out all sections, save as PDF, attach to email, and send to your regional office. Keep your sent receipt as proof.

SECTION 1 — YOUR INFORMATION

Full Legal Name

AISH / Income Support File Number

Date of This Appeal Notice (YYYY-MM-DD)

Your Phone Number

Your City / Town

Your Email Address (the address you will send this from)

SECTION 2 — THE OVERPAYMENT BEING APPEALED

Under the government's own policy (Assessment and Notification of an Overpayment, Nov 2024), you must be notified in writing of: the amount, the period affected, the reason, how it was calculated, and your right to appeal. If you have NOT received all of this in writing, state that in Section 4.

Amount of Overpayment Claimed

Date You Received the Overpayment Notice

Period of Assistance Affected — Start

Period of Assistance Affected — End

What I am appealing (check all that apply):

- ☐ The assessment of the overpayment itself
- ☐ The requirement to repay the overpayment
- ☐ Both the assessment AND the repayment requirement

SECTION 3 — GROUNDS FOR APPEAL (GOVERNMENT POLICY CRITERIA)

The criteria below are taken directly from the Criteria for Exempting the Requirement to Repay an Assessed Overpayment policy (IESA s.35). Check every item that honestly applies to your situation. One documented ground is sufficient to request an exemption.

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- ☐ The program played a significant role in causing this overpayment. The CDB clawback was an Alberta government policy decision, not caused by any action or omission on my part.
- ☐ I made a reasonable effort to advise the program of any change in my circumstances. I did not fail to disclose a material fact.
- ☐ I did not provide false information with respect to my income, assets, or personal situation in order to receive a benefit to which I was not entitled.
- ☐ My disability or medical condition contributed to any circumstance related to this overpayment.
- ☐ I was not aware I was receiving benefits to which I was not entitled. The retroactive CDB payment was issued by the federal government and I had no control over its timing or amount.
- ☐ Requiring full repayment would cause me undue financial hardship. My monthly income does not allow repayment without being unable to meet my basic needs for food, shelter, and medication.
- ☐ I did not materially benefit from this overpayment beyond what I would have received had the Canada Disability Benefit been issued on a periodic basis rather than as a retroactive lump sum.

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SECTION 4 — YOUR PERSONAL STATEMENT

Describe your situation in your own words. Explain why requiring you to repay this overpayment is unfair, incorrect, or would cause undue hardship. Reference your checked grounds. Include: your condition, your monthly income and expenses, who caused the overpayment situation, and why all or part of the overpayment should be exempted under IESA s.35(5).

Example: "I have been diagnosed with [condition] since [year]. The retroactive CDB payment was issued by the federal government — I had no control over its timing or amount. The Alberta government's decision to claw back CDB from AISH recipients was a policy decision, not the result of any misrepresentation on my part. Requiring me to repay \$[amount] would leave me with less than \$[X] per month for all living expenses. I formally request an exemption under IESA s.35(5)."

SECTION 5 — FINANCIAL HARDSHIP (RECOMMENDED)

Under the Recovery of Debt policy, recovery rates may be reduced to \$10/month for clients experiencing financial hardship. Under the Write Off and Suspension of Debts policy, a debt may be permanently written off if repayment would cause undue hardship. This information significantly strengthens your appeal.

Monthly Income (AISH / Income Support)

Monthly Rent

Monthly Medication / Medical Costs

Number of Dependents in Household

Additional hardship circumstances (disability costs, caregiving, transportation, etc.)

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SECTION 6 — HOW TO SUBMIT THIS APPEAL

- 1 Fill out ALL sections of this form completely.
- 2 Save the completed PDF to your phone or computer.
- 3 Open your email. Address it to your regional office AND your MLA (see below).
- 4 Copy the exact subject line from the blue box below. Attach this completed PDF.
- 5 Screenshot your sent email showing date, time, subject line, and recipient. That is your proof.
- 6 Save any auto-reply. If no response within 30 days, follow up in writing immediately.

EMAIL SUBJECT LINE — copy this exactly:

Formal Notice of Appeal — CDB Retroactive Overpayment — IESA Section 35 — [YOUR NAME] — [FILE NUMBER]

SECTION 7 — WHERE TO SEND THIS APPEAL

Region	Email	Phone
Edmonton & area (St. Albert, Spruce Grove, Sherwood Park)	aishedmonton@gov.ab.ca	780-415-6300
Calgary & area (Airdrie, Cochrane, Canmore, Okotoks)	calgaryaish@gov.ab.ca	1-844-297-1907
South Alberta (Lethbridge, Medicine Hat, Brooks)	aishsouth@gov.ab.ca	1-833-382-4081
North & NE Alberta (Athabasca, Barrhead, Cold Lake)	aishne@gov.ab.ca	1-888-644-1802
Central Alberta (Red Deer, Lacombe, Camrose, Wetaskiwin)	aishcentral@gov.ab.ca	1-833-698-9959
Not sure / General	AISHApply@gov.ab.ca	1-877-759-6810

Also send a copy to: Minister Nathan Neudorf — alss.minister@gov.ab.ca | Your MLA — see directory in group files | Income and Employment Supports Appeal Panel — AlbertaSupports@gov.ab.ca

SECTION 8 — YOUR RIGHTS UNDER THE GOVERNMENT'S OWN POLICY MANUAL

30-DAY APPEAL WINDOW: File within 30 days of your overpayment notice. Collection cannot start until this expires or your appeal is decided.

APPEAL BOTH DECISIONS: You can appeal the overpayment assessment AND the requirement to repay. Two separate decisions under IESA s.35.

RIGHT TO DOCUMENTATION: You have the right to provide additional documents at any time before your appeal is decided. New info may change the outcome.

EXEMPTION FROM REPAYMENT: Under IESA s.35(5), the Director may exempt you from repayment if appropriate circumstances exist, including program error or hardship.

HARDSHIP PROTECTION: Recovery rates may be reduced to \$10/month for active clients in financial hardship. Debts may be suspended or written off.

DO NOT SIGN EMP12208: Signing a Voluntary Repayment Agreement waives your right to written notice AND your right to appeal. Do not sign until your appeal is decided.